

29 Independence

- (1) A justices' clerk exercising –
 - (a) a function exercisable by one or more justices of the peace,
 - (b) a function specified in section 28(4) or (5) (advice on matters of law, including procedure and practice), or
 - (c) a function as a member of the Criminal Procedure Rule Committee or the Family Procedure Rule Committee,is not subject to the direction of the Lord Chancellor or any other person.
- (2) An assistant clerk who is exercising any such function is not subject to the direction of any person other than a justices' clerk.

*Places, dates and times of sittings***30 Places, dates and times of sittings**

- (1) The Lord Chancellor may give directions as to the places in England and Wales at which magistrates' courts may sit.
- (2) In exercising his powers under subsection (1), the Lord Chancellor shall have regard to the need to ensure that court-houses are accessible to persons resident in each local justice area.
- (3) The Lord Chancellor may, with the concurrence of the Lord Chief Justice, give directions as to the distribution and transfer of the general business of magistrates' courts between the places specified in directions under subsection (1).
- (4) Directions under subsection (3) may, in particular, contain provision that, where a person is charged with an offence and is being required to appear before a magistrates' court, the place where he is required to appear is one of the places described in subsection (5).
- (5) The places are –
 - (a) a place in the local justice area in which the offence is alleged to have been committed;
 - (b) a place in the local justice area in which the person charged with the offence resides;
 - (c) a place in the local justice area in which the witnesses, or the majority of the witnesses, reside;
 - (d) a place where other cases raising similar issues are being dealt with.
- (6) "The general business of magistrates' courts" does not include family proceedings (as defined in section 65 of the 1980 Act).
- (7) The Lord Chancellor may give directions as to the days on which and times at which magistrates' courts may sit.
- (8) Subject to any directions under subsection (7), the business of magistrates' courts may be conducted on any day and at any time.

Protection and indemnification of justices and justices' clerks

31 Immunity for acts within jurisdiction

- (1) No action lies against a justice of the peace in respect of what he does or omits to do –
 - (a) in the execution of his duty as a justice of the peace, and
 - (b) in relation to a matter within his jurisdiction.
- (2) No action lies against a justices' clerk or an assistant clerk in respect of what he does or omits to do –
 - (a) in the execution of his duty as a justices' clerk or assistant clerk exercising, by virtue of an enactment, a function of a single justice of the peace, and
 - (b) in relation to a matter within his jurisdiction.

32 Immunity for certain acts beyond jurisdiction

- (1) An action lies against a justice of the peace in respect of what he does or omits to do –
 - (a) in the purported execution of his duty as a justice of the peace, but
 - (b) in relation to a matter not within his jurisdiction,if, but only if, it is proved that he acted in bad faith.
- (2) An action lies against a justices' clerk or an assistant clerk in respect of what he does or omits to do –
 - (a) in the purported execution of his duty as a justices' clerk or assistant clerk exercising, by virtue of an enactment, a function of a single justice of the peace, but
 - (b) in relation to a matter not within his jurisdiction,if, but only if, it is proved that he acted in bad faith.

33 Striking out proceedings where action prohibited

- (1) If an action is brought in circumstances in which section 31 or 32 provides that no action lies, a judge of the court in which the action is brought may, on the application of the defendant, strike out the proceedings in the action.
- (2) If a judge strikes out proceedings under subsection (1), he may if he thinks fit order the person bringing the action to pay costs.

34 Costs in legal proceedings

- (1) A court may not order a justice of the peace to pay costs in any proceedings in respect of what he does or omits to do in the execution (or purported execution) of his duty as a justice of the peace.
- (2) A court may not order –
 - (a) a justices' clerk, or
 - (b) an assistant clerk,to pay costs in any proceedings in respect of what he does or omits to do in the execution (or purported execution) of his duty as a justices' clerk or assistant clerk exercising, by virtue of an enactment, a function of a single justice of the peace.